

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: August 18, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER DENYING COMPLAINANT’S MOTIONS OF AUGUST 10, 2026

On August 10, 2026, Complainant filed two documents: 1) Complainant’s Combined Motion for Leave to Exceed Page Limit, Motion for Reconsideration of the July 27, 2026 Order; and, in the Alternative, Motion for Leave to File an Interlocutory Appeal and Interlocutory Appeal Pursuant to 46 C.F.R. § 502.221 (“MTR”), and 2) Complainant’s Motion to Stay the August 25, 2026 Opening Brief Deadline and Further Merits Briefing (“MTS”).

Respondent filed responses on August 17, 2026, opposing all relief sought by Complainant.

As an initial matter, Complainant moved to file a non-dispositive motion that exceeds the page limits. Without exhibits, the motion is 53 pages. Non-dispositive motions typically have a limit of 10 pages. (46 C.F.R. § 502.71(d)). I generally allow parties to have a reasonable number of additional pages to make their arguments, and I have allowed Complainant to have additional pages on several occasions. Indeed, in my Order Regarding Complainant’s Motions of July 15, 2026 (the “July 27 Order”), I even allowed Complainant to file a 33-page motion. Here, Complainant wants to file a non-dispositive motion that is greater than five times the page limit for a non-dispositive motion. Although I appreciate that Complainant is vigorously advocating its position, the MTR is too long. Thus, the MTR is **DENIED** to the extent it seeks to exceed page limits.

Looking past the length of the MTR, in general, Complainant argues I should reconsider my July 27 Order, where I denied Complainant’s request to reopen and extend discovery.

Before I issued the July 27 Order, I also denied Complainant’s request to reopen and extend discovery in my Order Denying Complainant’s Motion to Extend Discovery and Remaining Deadlines on July 14, 2026 (the “July 14 Order”). In other words, I already twice denied Complainant’s request to reopen and extend discovery. Complainant is now asking for a third time to reopen and extend discovery.

In both the July 14 Order and July 27 Order, I concluded that this case, which was filed on June 9, 2025 – over 14 months ago – needs to come to an end. Discovery is typically supposed to last 150 days (46 C.F.R. § 502.141(g)), but discovery lasted nearly 12 full months in this case. (*See* July 14 Order, at 2-3, 5). This is a relatively straightforward case that involves two containers, and turns on whether Respondent is a non-vessel operating common carrier. (July 14 Order, at 2-3; July 27 Order, at 1). It does not warrant 12 months of discovery. Moreover, Complainant’s own lack of cooperation and diligence materially affected the length of time this case has taken. (July 14 Order, at 6-7; July 27 Order, at 1). In short, Complainant has had plenty of time to develop its case. If Complainant has not, that, in part, is Complainant’s own fault. For example, Complainant could have sought to issue third-party document subpoenas several months ago – but Complainant did not request such subpoenas until more two weeks after the deadline for submission of additional discovery requests, and two days before the close of discovery. (July 14 Order, at 5). Complainant offered no reason or justification for its delay other than “litigation judgment.” (MTR, at 44). Litigation judgment does not excuse failing to comply with deadlines.

The main reason Complainant wants more time for discovery is because Complainant argues that Respondent has not complied with my April 1 Order requiring Respondent to produce documents. (*See generally* MTR; *see also* Order Granting in Part and Denying In Part Respondent’s Motion to Dismiss, Granting in Part and Denying in Part Complainant’s Motion to Compel, and Requiring Respondent to Provide a Declaration (the “April 1 Order”)). I reviewed Complainant’s arguments in the MTR, and find that Complainant largely reiterates and expands on arguments previously raised.¹ I do not address all arguments raised in the MTR specifically other than to say I find no basis for reconsidering my July 14 Order and my July 27 Order. The dispositive point is that I find that the Villena Declaration, taken at face value, shows that Respondent materially complied with my April 1 Order. (July 27 Order, at 2, 4-5). Complainant obviously does not agree with my conclusion. I appreciate why Complainant is suspicious – Respondent’s conduct during this litigation has been less-than-ideal (*see, e.g.*, Order Regarding Complainant’s Motions of May 9, 2026, and Addressing Deferred Ruling Regarding Complainant’s Motion for Reasonable Discovery, at 8). But Complainant has not persuaded me that the searches described in the Villena Declaration were materially deficient, nor has Complainant persuaded me that the Villena Declaration is materially inaccurate. Accordingly, the MTR is **DENIED** to the extent it seeks reconsideration.

The MTR asks for a certification of interlocutory appeal pursuant to 46 C.F.R. § 502.221. (MTR, at 48-52). In addition, along with the MTR, Complainant filed the MTS, seeking to stay the matter. (*See generally* MTS). Commission Rule 221 provides in relevant part:

- (a) Rulings of the presiding officer may not be appealed prior to or during the course of the hearing, or subsequent thereto, if the proceeding is still before him or her, except where the presiding officer finds it necessary to allow an

¹ Complainant points out that I mis-quoted 46 U.S.C. § 40102(7)(ii) in my July 27 Order, at 5. (MTR, at 32). I acknowledge that I inadvertently mis-quoted the statute. My mistake, however, is immaterial for purposes of the MTR, as my rationale articulated in the July 27 Order, at 5, is unaffected by my mistake.

appeal to the Commission to prevent substantial delay, expense, or detriment to the public interest, or undue prejudice to a party.

...

(d) Unless otherwise provided, the certification of the appeal will not operate as a stay of the proceeding before the presiding officer.

(46 C.F.R. § 502.221(a) & (d)).

At this point in the proceeding, I find it to be more likely than not that the most efficient path forward would be to continue following the current case schedule, which is set forth in the June 12, 2026, Order Extending Deadlines. I acknowledge that if the parties submit briefs and get an initial decision, and that if the Commission vacates and remands the initial decision because the Commission disagrees with my July 14 Order and July 27 Order, this case could become substantially more expensive for the parties. But, it is also that case that there are several ways this matter could play out that the most efficient, straightforward way of proceeding is simply to let the parties submit their dispositive briefs, receive an initial decision, and then proceed as they choose. For example, if the initial decision gives Complainant all the relief it wants, and the Commission affirms, then allowing an interlocutory appeal would be a waste of everyone's time and resources. Thus, I find that the most likely best course forward is to follow the current schedule.

For these reasons, the MTR is **DENIED**, and the MTS is **DENIED**.

Richard C.
Ambrow Jr -S

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Richard Ambrow
Administrative Law Judge